

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTHONY METCALF SCHWARTZ,

Petitioner

VS.

GRACE MARIA SCHWARTZ,

Respondent

) Case Number: FDI-18-790180

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS, DECLARE COM. PROPERTY;
ENFORCE ORDERED SPOUSAL SUPPORT ORDERS, (MORE)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anthony Metcalf Schwartz and Respondent Grace Maria Schwartz.
- 2) On 2/10/26, Respondent filed a Request for Order seeking \$7,500 in attorney's fees, enforcement of spousal support and "lump-sum payments" ordered by the Court, sanctions, and "a finding of perjury". The Court notes section 8(a) – 8(c) are completed on form FL-300 (Request for Order); however, Respondent did not check the section 8 box, "Time for Service/ Time Until Hearing" or the "Temporary Emergency Orders" box in the caption of the form. Respondent concurrently filed a declaration entitled Request for a Long-Cause Hearing, a Memorandum of Points and Authorities, and a declaration entitled Declaration in Support of An Order Shortening Time. The matter was set for hearing on the Court's regular calendar on 4/30/26.
- 3) There is no Proof of Service on file indicating Respondent's 2/10/26 Request for Order and supportive pleadings were served on Petitioner.
- 4) Petitioner did not file a Responsive Declaration.

1 **B. Findings and Order**

- 2 1) The Court finds that Respondent's 2/10/26 Request for Order was not served at least 16 Court
3 days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 4 2) As such, this matter is **continued to 6/16/26 at 9 AM in Dept. 403** for lack of service.
- 5 3) At least 16 Court days prior to the next hearing date, Respondent shall file and serve
6 on Petitioner the (a) 2/10/26 Request for Order and supportive pleadings, (b) Continuance Order
7 contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the
8 Code of Civil Procedure (i.e., a person over the age of 18 shall mail to Petitioner the (a) Request
9 for Order and supportive pleadings, (b) Continuance Order, and (c) Tentative Ruling Instructions,
10 and then Respondent shall file form FL-335 (Proof of Service) with the Court confirming service
11 was effectuated).
- 12 4) At least 9 Court days prior to the next hearing date, Petitioner may file a Responsive Declaration.
- 13 5) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply
14 Declaration.
- 15 6) The Court will prepare the Findings and Order After Hearing.
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